

**Before the
FEDERAL MARITIME COMMISSION**

Docket No. 24-09

TZ SSE Buyer, LLC v. COSCO Shipping Lines Co., Ltd.

**RESPONDENT’S REPLY TO COMPLAINANT’S
MOTION FOR LEAVE TO FILE A SURREPLY**

Earlier today, TZ SSE Buyer, LLC (“Complainant” or “TZ SSE”) filed a motion for leave to file a surreply to Respondent COSCO Shipping Lines Co., Ltd.’s Response to Complainant’s Reply to Respondent’s Motion for Partial Summary Judgment (Surreply Motion). Complainant alleges extraordinary circumstances based on a question raised by Respondent with respect to Complainant’s adherence to the requirement of candor to the tribunal. Respondent does not object to the Surreply Motion, but has a few points to make:

1. The Surreply Motion fails to recite that Complainant conferred with Respondent before filing the Motion, as required by the Commission’s Rules. This is because Complainant made no attempt whatsoever to confer.

2. Complainant’s assertion of extraordinary circumstances is equally wide of the mark. Contrary to Complainant’s assertion, Respondent did not challenge the integrity of Complainant’s Counsel. Even apart from the fact that any such challenge may only be raised via petition to the Commission itself, rather than by an observation in a filing directed to the Administrative Law Judge without a request for relief,¹ all Respondent said is that the failure to

¹ See *Ovchinnikov v. Hitrinov*, Docket No. 15-11, 2023 WL 1963462 (FMC 2023).

disclose the recent decision to the Presiding Officer contravenes at least to the spirit of the Model Rules.

3. Complainant (in its Surreply Motion) and Respondent have different views as to the propriety of Complainant's omission of an adverse precedent. But the matter is in any event moot, because Respondent has not filed, and does not intend to file, a petition with the Commission and has not sought any relief from the Presiding Officer based on the omission.

Dated: April 2, 2025

Respectfully submitted,

By: /s/ Rebecca A. Fenneman

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CERTIFICATE OF SERVICE

I hereby certify that on this 2nd day of April, 2025 a true and correct copy of the foregoing document was served by email on all counsel of record in accordance with 46 CFR Part 502 and the Commission's Order of May 12, 2020.

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